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| 11.                       | 26CV1535 | SAN XIN YAN ET AL VS. VIVIAN FANG LI |
| ATTORNEY DISQUALIFICATION |          |                                      |

The Notice does not comply with Local Rules 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

On July 31, 2026, Plaintiffs, Gold Mountain Winery, Inc., Xiao Ying Zhang, and San Xin Yan (collectively "Plaintiffs"), filed a Motion to Disqualify Counsel for Defendant. Plaintiffs allege that Defendant's counsel, X. Young Lai, entered his appearance as counsel of record for Plaintiff Gold Mountain Winery, Inc. in a Santa Clara action, and by his entry of appearance, created a substantial relationship between the former and current representation where the acquisition of confidential information was presumed. As a result, Mr. Lai is not qualified to represent Defendant against Plaintiff Gold Mountain Winery Inc.

On the same date, the Court entered an Order Appointing Receiver, wherein the Court appointed Susan M. Didriksen ("Receiver"). Plaintiff San Xin Yan's reply acknowledges that the Receiver appointed is the authorized person to represent Plaintiff Gold Mountain Winery, Inc., and it is the decision of the Receiver on whether to continue to pursue the underlying Motion to Disqualify Counsel.

The Court orders the Receiver to review the pending Motion to Disqualify Counsel and file a Status Report on or before October 15, 2026, advising the Court whether the corporation elects to continue pursuing the motion. Plaintiffs' motion is continued to October 23, 2026.

**TENTATIVE RULING #11:**

**PLAINTIFFS' MOTION TO DISQUALIFY COUNSEL FOR DEFENDANT IS CONTINUED TO OCTOBER 23, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THE RECEIVER IS ORDERED TO COMPLY WITH THE FILING OF THE STATUS REPORT AS DESCRIBED IN THE TENTATIVE RULING.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).**

**NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.**

**LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT**

September 18, 2026  
Dept. 9  
Civil Tentative Rulings

**REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**